



U.S. Customs and Border Protection

EAPA Cons. Investigation 7950: CPF Legacy, LLC, doing business as C. Pacific Foods; Handylee Enterprises (USA) Corp.; Jefe Enterprise (USA) Inc.; and Highland USA International Inc. (Notice of Covered Merchandise Referral, December 18, 2024)

Concerning the Investigation of Evasion of the Antidumping Duty Order on Monosodium Glutamate (MSG) from the People's Republic of China (China) (A-570-992 or AD Order)

On April 1, 2024, CBP initiated an EAPA investigation pursuant to Title IV, Section 421 of the Trade Facilitation and Trade Enforcement Act of 2015, because the Allegations reasonably suggested that CPF Legacy, LLC, doing business as C. Pacific Foods; Handylee Enterprises (USA) Corp.; Jefe Enterprise (USA) Inc.; and Highland USA International Inc. (collectively, Importers) entered MSG into the customs territory of the United States by means of evasion. On July 1, 2024, CBP imposed interim measures on the Importers because evidence supported a reasonable suspicion that the Importers imported merchandise covered by the AD Order into the customs territory of the United States by means of evasion.

The scope of the AD Order covers:

“...MSG, whether or not blended or in solution with other products. Specifically, MSG that has been blended or is in solution with other product(s) is included in the order when the resulting mix contains 15 percent or more of MSG by dry weight. Products with which MSG may be blended include, but are not limited to, salts, sugars, starches, maltodextrins, and various seasonings. Further, MSG is included in the order regardless of physical form (including, but not limited to, in monohydrate or anhydrous form, or as substrates, solutions, dry powders of any particle size, or unfinished forms such as MSG slurry), end-use application, or packaging.

MSG in monohydrate form has a molecular formula of $C_5H_8NO_4Na \cdot H_2O$, a Chemical Abstract Service (CAS) registry number of 6106-04-3, and a Unique Ingredient Identifier (UNII) number of W81N5U6R6U. MSG in anhydrous form has a molecular formula of $C_5H_8NO_4Na$, a CAS registry number of 142-47-2, and a UNII number of C3C196L9FG.”

CBP is unable to determine whether MSG produced by Ajinoriki Msg (Malaysia) SDN BHD (Malaysia Ajinoriki) from certain Chinese inputs and/or certain third country inputs is covered merchandise in accordance with the AD Order. Therefore, CBP requests that Commerce make a determination on whether the MSG produced in Malaysia by Malaysia Ajinoriki by processing Chinese-origin glutamic acid into MSG is covered by the AD Order. Such a determination will assist CBP's EAPA investigation in determining if the MSG produced in Malaysia under such a process is subject to the payment of AD duties.

If you have any questions specific to EAPA Cons. Investigation 7950, please contact CBP at eapallegations@cbp.dhs.gov, and include EAPA Cons. Investigation 7950 in the subject line of the message. For any questions specific to the scope referral and its procedures, please contact Commerce at the Customs and Border Protection Liaison Unit, Enforcement and Compliance, International Trade Administration, at (202) 482-0984.